NKULULEKO MSIPA
versus
TOBIAS JECHE
and
CHITUNGWIZA MUNICIPALITY

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 18 February & 29 April 2026.

Stated Case

S. Mahuni, for the plaintiff
T. A Pararira, for the defendant

MANZUNZU J

INTRODUCTION

(1) The dispute between the parties is a fight over the ownership of a property known as stand 18897 Unit L, Seke, Chitungwiza. The plaintiff's claim seeks a declaratory order to be declared the lawful owner of the property. In a counter-claim the defendant seeks a similar relief. At the close of the pleadings, the parties decided to proceed by way of a stated case in terms of rule 52 (1) of the High Court Rules, 2021. I will recite hereunder the parties stated case which identify the issues upon which the court is invited to resolve.

A. STATEMENT OF AGREED FACTS

(2) "The following are the agreed facts on which the Court's decision is sought.

1. The Plaintiff entered into an agreement of sale with Phibion Gaza on the 27th of May 2003 in respect of Stand No. 18897 Unit L, Seke, Chitungwiza (the property). The agreement was witnessed by Tererai Nyika, who also had rights in the property.
2. On the 17th of December 2003 the late Douglas Mavhu entered into an agreement of sale with Tererai Nyika and Phibion Gaza in respect of the property.

3. After Tererai Nyika and Phibion Gaza had failed to effect cession of the property into the late Douglas Mavhu's name the latter filed a court application with this honourable court in case number HC145/04. On the 13th of October 2004 Justice Guvava granted a default judgment in favour of the late Douglas Mavhu.
4. The effect of the order in case number HCH145/04 was to compel Tererai Nyika and Phibion Gaza to effect cession into the late Douglas Mavhu's name and to restrain the 2nd defendant from ceding the property to any other party save for the late Douglas Mavhu. Cession was subsequently effected into the late Douglas Mavhu's name.
5. After Phibion Gaza had failed to effect cession into the plaintiff's name the latter filed a court application in case number HC8686/04. Justice Omerjee granted a default judgment in favour of the plaintiff on the 2nd of February 2005.
6. The late Douglas Mavhu passed away on the 25th of November 2007. His surviving wife, Mavis Makumbiza entered into an agreement of sale in respect of the property with the 1st defendant on the 12th of May 2008.
7. On or around the 20th of October 2008 cession rights, title and interest from the late Douglas Mavhu to the 1st defendant was effected.
8. By an order in case number HC5042/05 the plaintiff was joined as a party in case number HC145/04. He went on to file his opposing papers and counter application in case number HC145/04. On the 22nd of July 2008 Justice Karwi issued a default judgment in favour of the plaintiff. The effect of the order was to compel Tererai Nyika and Phibion Gaza to effect cession of the property into the plaintiff's name.
9. After obtaining the default order in case number HC 145/04 the plaintiff managed to effect cession of the property into his name, and this was done on or around the 6th of November 2008.
10. In case number HC591/10 Mavis Makumbiza and the 1st Defendant filed a court application for rescission of the default order in case number HC145/04. Justice Dube granted an order for rescission on the 22nd of May 2012. There was an error on the order by Justice Dube and an application for amendment was made. An amended draft order was issued by Justice Mwayera on the 26th of March 2013.
11. On several occasions the 1st defendant advised the 2nd defendant that the order of the 22nd of July 2008 in favour of the plaintiff had been set aside and requested cession of rights over the property into his name.

12. To date the 2nd defendant is still to effect cession of rights over the property into the 1st defendant's name.

B. ISSUES FOR DETERMINATION

13. Whether or not the plaintiff must be declared the lawful buyer and owner of stand number 18897 Unit L, Seke, Chitungwiza.
14. Whether or not the 1st defendant should be declared the lawful holder of the rights, title and interest in stand number 18897 Unit L, Seke, Chitungwiza.

C. THE CONTENTIONS BY THE PARTIES

15. The Plaintiff's position is as follows:

15.1 He purchased the property ahead of the 1st respondent.

15.2 He has been in occupation of the property from the 1st January 2004 up to date and has made improvements valued at around US$30 000.00.

15.4 The court order he obtained under case number HC86866/04 is extant.

16. The 1st respondent's position is as follows:

16.1 The plaintiff only entered into an agreement with Phibion Gaza, who could not pass Tererai Nyika's rights without his consent.

16.2 The cession into the plaintiff's name that was effected in or around 6th November 2008 has no legal basis since the order in case number HC145/04 that was obtained by the plaintiff was set aside in case number HC 591/10.

16.3 Cession of rights from estate Douglas Mavhu into his name was done around the 20th of October 2008 before cession was effected into the plaintiff's name on and around 6 November 2008.

16.4 That the order in case number HC8686/04 has not been set aside is of no consequence because cession into the plaintiff's name was not effected on the basis of this order. Further, the order was only obtained against Phibion Gaza and yet Tererai Nyika also had rights in the property.

D. AGREED BUNDLE OF DOCUMENTS

17. For the purposes of the decision of the Court on the issues referred to for decision, the court shall have regard to the attached bundle of documents."

WHO SHOULD BE DECLARED THE LAWFUL OWNER OF THE PROPERTY BETWEEN THE PLAINTIFF AND 1ST DEFENDANT:

(3) The dispute between the parties is resolved by tracing the cession rights as they devolved from the original holder's *vis-a-vis* the effect of the various court orders.

(4) The court in CBZ *Bank Limited* v *Moyo & Anor* SC 17-18 explained what cession of rights means. It stated that:

> "There is a distinction between cession of rights and the transfer of ownership from one person to another. Where parties enter into a contract of sale of land, ownership is passed through registration in the Deeds Registry in terms of s 14 (a) of the Deeds Registries Act. Cession of rights over immovable property on the other hand does not result in ownership being passed from one person to the other. It simply passes limited rights which fall short of ownership, as ownership remains with the local authority."

(5) The *Moyo* case *supra* also explained how ownership is proved, when the court stated that;

> "Ownership of immovable property is proved by producing a deed of transfer. On the other hand, in the *Muwandi* case, rights acquired through cession of rights in immovable property were proved through registration of a cession at a local authority. In that case the cedent had done all he was expected to do to transfer to the cessionary his rights in the property which belonged to a third party…….
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> In any event, the registration of transfer in the Deeds Registry or registration of cession at the offices of a local authority or Deeds Registry does not always reflect the true state of affairs. A title deed or registered cession is therefore *prima facie* proof of ownership or cessionary rights which can be successfully challenged. When the validity of title or registered cession is challenged, it is the duty of the court to determine its validity in order to make a ruling which is just and equitable. The fact that it can be challenged is vital for the disposal of this appeal."

(6) Tererai Nyika and Phibion Gaza were the original cession rights holders of the property, they sold their rights and interest in the property to the plaintiff on 27 May 2003. Although the 1st defendant raises issue with the validity of the agreement in that Tererai Nyika only signed the agreement as a witness; such challenge is of no legal consequence because the agreement remains extant and has not been set aside and the parties have embraced the existence of the agreement in their statement of agreed facts.

(7) Tererai Nyika and Phibion Gaza did not facilitate transfer of their rights and interest in the property to the plaintiff until they had to be sued by the plaintiff. The plaintiff took occupation of the property from 1 January 2004 to date.

(8) On 17th of December 2003 Tererai Nyika and Phibion Gaza sold their rights and interest in the same property to the late Douglas Mavhu. At this point, emerges the act of a double sale.

(9) Through a court application in case number HC145/04 an order was granted in default on the 13th of October 2004 compelling Tererai Nyika and Phibion Gaza to facilitate transfer of their rights and interest in the property to Douglas Mavhu.

(10) On 2 February 2005 in case number HC 8686/04 an order in favour of plaintiff was granted in default to compel Phibion Gaza to facilitate transfer of cession rights to the plaintiff. The order supersedes the one granted in favour of Douglas Mavhu on 13 October 2004.

(11) On 2 February 2005 the plaintiff had the extant order to receive cession rights to the property. On 25 November 2007 the estate of Douglas Mavhu sold rights and interest in the property to the defendant at a time when there was a court order to say cession rights were to go to the plaintiff. Cession rights were transferred to the defendant on 20 October 2008.

(12) In the meantime, the plaintiff, through a counter application in HC145/04, having been joined in the case through an order in HC5042/05, obtained an order on 22 July 2008 to compel Tererai Nyika and Phibion Gaza to effect cession into plaintiff's name. The order supersedes the previous orders. On the basis of this order the plaintiff had a cession in his favour on 6 November 2008. On 22 May 2012 the decision in HC 145/04 of 22 July 2008 was rescinded under case number HC591/10. This means the cession to plaintiff of 6 November 2008 falls away.

(13) The plaintiff can only rely upon the agreement of sale and the extant order in case number HC8686/04. The defendant relies upon the agreement of sale with the estate of the late Douglas Mavhu and the subsequent cession into his name.

(14) The character of this sale does not change, it remains a double sale where the initial purchasers are the plaintiff and Douglas Mavhu. The defendant can only stand in the shoes of Douglas Mavhu to assert his rights from the property.

(15) In the case of *Guga v Moyo & Ors* 2000 (2) ZLR 458 (S) at 459E-H; the court stated the basic rules on double sales. It stated that:

> "The basic rule in double sales where transfer has not been passed to either party is that the first purchaser should succeed. The first in time is the stronger in law. The second purchaser is left with a claim for damages against the seller, which is usually small comfort. But that rule applies only 'in the absence of special circumstances affecting the balance of equities'.
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> See Mckerron (1935) 4 *SA Law Times* 178, Burchell (1974) 91 SALJ 40. Burchell was of the view that 'the balance of equities must weigh heavily in favour of the second purchaser' before the court could favour her over the first purchaser."

(16) The court in *Chimphonda v Rodriques and Ors* 1997 (2) ZLR 63 ZLR 63 (H) also looked at double sale of property, it stated that:

> "In a double sale situation where the second buyer had knowledge of the first sale of the property, either at the time of the sale or at the time it took transfer of the property, then, unless there are special circumstances affecting the balance of equities, the first buyer can recover the property from the second buyer. In such instance, the second buyer's only remedy is an action for damages against the seller. In deciding whether there are special circumstances affecting the balance of equities, the court must bear in mind that the primary right of the wronged buyer is the remedy of specific performance which will be granted unless there is some equitable reason disqualifying him from obtaining such relief."

ANALYSIS

(17) The dispute between the parties started as far as 2004. The plaintiff was the first purchaser of the property. When default judgment was granted in favour of the plaintiff in HC145-04, the plaintiff managed to effect cession of the property into his name. The plaintiff has also developed and has been in occupation of the property since 2004.

The 1st defendant only made an application for the rescission of default judgment in 2010, under case number HC591-10. The application for rescission was granted in 2012 and a subsequent amendment of the order which had an error was issued in 2013.

It is common cause that no one had the title deed to the property. Ownership is with the local authority; both parties claim limited rights or cession rights to the property. As cited from the above authorities the law on double sales is clear, in that the 1st purchaser is likely to succeed. The 2nd purchaser should succeed in special circumstances which do not exist in the present matter.

The plaintiff being the 1st purchaser succeeds in their claim for a declaratory order with regards to stand number 18897 Unit L, Seke Chitungwiza. The balance of convenience actually favours the plaintiff who upon the purchase of the property took occupation and has

invested in the property through improvements. The defendant knew of the controversy over the property when he took cession rights which were also acquired in the face of an extant order in favour of the plaintiff. No special circumstances have been shown for the scale to tilt in favour of the defendant.

DISPOSITION

The plaintiff's claim succeeds.

1. The plaintiff be and is hereby declared the lawful buyer and owner of Stand Number 18897 Unit L, Seke, Chitungwiza.

2. The 1st defendant's counter claim is hereby dismissed.

3. The 1st defendant shall pay costs of suit.

MANZUNZU J…….

Mahuni and Mutatu, the plaintiff's legal practitioners
Wintertons, the 1st defendant's legal practitioners.